

CV-25-003678 JOSEPH, BRADLEY BRICK vs SANDHU, NARENDER KAUR – Plaintiff's Motion for Leave to Amend Complaint – GRANTED. Plaintiff is ordered to pay all fees for any person who needs to be redeposed and Defendant may seek attorney fees for additional time spent due to the lateness of the amendment.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: California maintains a strong policy favoring amendment of pleadings and leave to amend should be liberally granted absent a showing of substantial prejudice, unreasonable delay causing prejudice, or clear futility. Plaintiff seeks to add employment-related causes of action arising from the same employment relationship, workplace injury, and post-injury events that form the basis of the existing action. Plaintiff contends that additional discovery obtained during the litigation revealed facts supporting FEHA and Labor Code claims not asserted in the original complaint. Plaintiff's showing regarding diligence is weak. Many of the facts supporting the proposed employment claims

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California maintains a strong policy favoring amendment of pleadings and leave to amend should be liberally granted absent a showing of substantial prejudice, unreasonable delay causing prejudice, or clear futility. Plaintiff seeks to add employment-related causes of action arising from the same employment relationship, workplace injury, and post-injury events that form the basis of the existing action. Plaintiff contends that additional discovery obtained during the litigation revealed facts supporting FEHA and Labor Code claims not asserted in the original complaint.

Plaintiff's showing regarding diligence is weak. Many of the facts supporting the proposed employment claims - including the alleged misclassification, wage practices, accommodation requests, and termination - were known to Plaintiff before the motion was filed. Further, Plaintiff relies heavily on an assertion that discovery responses received on April 6, 2026, established Defendants employed five or more employees, yet the referenced discovery responses were not submitted with the motion.

Nevertheless, delay alone is generally insufficient to justify denial of leave to amend. *P&D Consultants Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332 does not lead to a different conclusion; in that case the request was made after the trial readiness conference.

The relevant inquiry is whether Defendants have demonstrated substantial prejudice. Most of the prejudice cited is to the substantial expansion and recharacterizing of the case, but this is the nature of the allegations rather than through delay.

The Court further finds that Plaintiff has substantially complied with California Rules of Court, rule 3.1324 by submitting a proposed amended pleading and a supporting declaration addressing the effect of the amendment, the reasons amendment is sought, when the allegedly supporting facts were discovered, and why amendment was not sought earlier.

The Court expressly does not determine the legal sufficiency of the proposed causes of action. Defendant cites to rules regarding futility, but does not argue them with any specificity. Those issues may be addressed through demurrer, motion to strike, or other responsive pleadings. The Court's ruling is limited to whether Plaintiff should be permitted to file the proposed amended pleading.

Considering the policy favoring amendment and the absence of a sufficient showing of prejudice, the motion is GRANTED. Whether this is a good policy or not is a matter left to the legislature.

Plaintiff shall file and serve the First Amended Complaint within 10 days of service of the order. Defendants shall respond within the time permitted by law. Under section 473, the Court can make equitable orders, and does so, ordering Plaintiff to pay all deposition fees for any person who must be redeposed based on the change in circumstances, and permitting Defendant to seek attorney fees from this Court for additional time spent due to the delay. (This does not include all work on the new causes of action, but rather the amount caused by the delay.)